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Kings County Elections

RESOLUTION NO. 2026-22

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF LEMOORE APPROVING AN ORDINANCE IMPOSING A TRANSIENT OCCUPANCY TAX TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION AND CALLING FOR PLACEMENT ON THE BALLOT FOR THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION OF THE PROPOSED TRANSIENT OCCUPANCY TAX MEASURE FOR SUBMISSION TO THE QUALIFIED VOTERS OF SAID ORDINANCE

WHEREAS, the City Council met at its regularly scheduled meeting of January 20, 2026, and directed City staff to prepare materials for the Council to consider placement of a proposed ballot measure for a proposed general tax increase to the City's current Transient Occupancy Tax rate of eight percent (8%); and

WHEREAS, applicable provisions of the California Revenue and Taxation Code and California Government Code authorize the City to increase a transient occupancy tax for general purposes by ordinance following approval by a majority vote of the qualified electors of the City voting in an election on the issue; and

WHEREAS, the City currently imposes a uniform Transient Occupancy Tax of eight percent (8%) on visitors who stay in hotels, motels, inns, or other short-term rentals in the City for thirty (30) days or less; and

WHEREAS, in accordance with applicable provisions of the California Constitution and California Elections Code the City Council desires to submit to the voters of the City of Lemoore a ballot measure proposal to increase the existing rate of the transient occupancy tax in the City of Lemoore by four percent (4%), for a total rate of twelve percent (12%) (hereinafter the "Measure"); and

WHEREAS, if the Measure is approved by the voters, the increased transient occupancy tax is a general tax, the revenue of which will be placed in the City's general fund and be used to pay for any general City services; and

WHEREAS, if the Measure is approved by the voters, every operator if a hotel, motel, inn, or other short-term rental property in the City shall collect the tax from occupants who stay for thirty (30) days or less and are subject to the tax and remit the funds to the City; and

WHEREAS, California Government Code section 53724(d) states that "the legislative body of the local government . . . may provide that the election on any tax proposed pursuant by [Government Code Title 5, Division 2, Part 1, Chapter 4, Article 3.7] shall be held at any date otherwise permitted by law"; and

WHEREAS, the transient occupancy tax increase described in the Measure cannot be imposed without voter approval; and

WHEREAS, voter approval of the Measure increasing the City's transient occupancy tax rate will require an ordinance amending the Lemoore Municipal Code section defining the rate and more completely describing the Measure and the details of the tax, which ordinance shall be prepared by the City Attorney so as to be enacted if the Measure is approved by the voters (hereinafter "Ordinance"); and

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Lemoore as follows:

Section 1. The City Council hereby finds and determines that the foregoing recitals are true and correct and are hereby incorporated by reference.

Section 2. Under the provisions of the California Elections Code, the question to be submitted to the voters at the General Municipal Election to be held on November 3, 2026, shall be printed on the election ballot in the following form:

CITY OF LEMOORE: TRANSIENT OCCUPANCY TAX MEASURE

Shall the measure amending the Lemoore Municipal Code to increase the maximum Transient Occupancy (Hotel) Tax paid by hotel and vacation rental guests from 8% to 12%, providing approximately $512,000 annually for general City services, including police, fire, parks and recreation, infrastructure maintenance, and other general governmental purposes, until ended by voters, be adopted?

YES □ NO □

Section 4. The City Council hereby approves the Introduction of Ordinance 2026-XX, the City of Lemoore Transient Occupancy Tax Ordinance of 2026, attached to this Resolution as Attachment A, and approves submittal of such Ordinance to the voters of the City of Lemoore. The proposed measure involves the increase of an existing general tax as defined in Article XIIIC of the California Constitution and shall not take effect unless and until: (i) approved by a majority of the voters voting on the question at the election; and (ii) approved by a two-thirds vote of the Lemoore City Council.

Section 5. The measure shall be designated on the ballot by a letter, as provided in Elections Code Section 13116. This measure shall be designated by letter by the Kings County Registrar of Voters.

Section 6. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding special elections.

Section 7. Pursuant to Elections Code section 12111, the City Council hereby directs the City Clerk, with the assistance of the City Attorney, to prepare a synopsis of the Measure and transmit the synopsis to the Kings County Registrar of Voters to be published in accordance with section 12111.

Section 8. The full text of the Measure submitted to the voters will appear in the sample ballot and voter's pamphlet. The Ordinance to be enacted to implement the Measure, if the Measure is approved by the voters, will not be printed in the sample ballot and voter's pamphlet. However, the full text of the Measure and the full text of the Ordinance will be made available at the Office of the Kings County Registrar of Voters and the Office of the City Clerk.

Section 9. Arguments in favor of or against the proposed measure shall be filed with the Kings County Registrar of Voters in accordance with applicable provisions of the Elections Code, including sections 9280 through 9287 thereof.

Section 10. Pursuant to Elections Code section 9280, the City Council hereby directs the City Clerk to transmit a copy of the Measure to the City Attorney, and the City Attorney shall prepare an impartial analysis of the Measure in accordance with Elections Code section 9280 and file it with the Kings County Registrar of Voters.

Section 11. The City Clerk shall file a certified copy of this Resolution with the Kings County Registrar of Voters as required by applicable law. The City Clerk is hereby authorized and directed to work with the Kings County Registrar of Voters and take all steps necessary to cause placement of the Measure and any associated arguments, analysis, synopsis, summary, or ballot question on the ballot.

Section 12. The City Clerk and City Attorney are authorized to make any typographical, clerical, non-substantive corrections to this Resolution and the Measure to be placed on the ballot as may be deemed necessary by the Kings County Registrar of Voters.

Section 13. California Environmental Quality Act (CEQA). The adoption of this Resolution is exempt from the California Environmental Quality Act, Public Resources Code§§ 21000 et seq. ("CEQA") and 14 Cal. Code Reg. §§ 15000 et seq. ("CEQA Guidelines"). The calling and noticing of a Special Election for the submission of a ballot measure to voters is not a project within the meaning of CEQA Guidelines Section 15378. The transient occupancy tax increase submitted to the voters is a general tax that can be used for any governmental purpose; it is not a commitment to any particular action or actions. As such, under CEQA Guidelines Section 15378(b)(4), the tax is not a project within the meaning of CEQA because it creates a government funding mechanism that does not involve any commitment to any specific project that may result in a potentially significant physical impact on the environment.

SECTION 14. Severability. If any section, subsection, sentence, clause, phrase or portion of this Resolution or its application to any person or circumstance is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Resolution or its application to other persons and circumstances. The City Council of the City of Lemoore hereby declares that it would have adopted this Resolution and each section, subsection, sentence, clause, phrase, or portion thereof irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or portions be declared invalid or unconstitutional and, to that end, the provisions hereof are hereby declared to be severable.

RESOLUTION NO. 2026-22

The foregoing Resolution was approved and adopted at a regular meeting, by the City Council of the City of Lemoore held this 7th day of July, 2026, by the following vote:

AYES: Gornick, Brewster, Lyons, Cruz, Matthews

NOES: None

ABSENT: None

ABSTAINING: None

ATTEST:

Marisa Avalos
City Clerk

APPROVED:

Patricia Matthews
Mayor

ORDINANCE NO. 2026-XX

AN ORDINANCE OF THE PEOPLE OF THE CITY OF LEMOORE, CALIFORNIA AMENDING LEMOORE MUNICIPAL CODE SECTION xxx TO INCREASE THE CITY'S TRANSIENT OCCUPANCY TAX RATE FROM EIGHT PERCENT (8%) TO TWELVE PERCENT (12%) EFFECTIVE JANUARY 1, 2027

WHEREAS, the City of Lemoore's prime responsibilities are to protect the public's safety, maintain fiscal stability, and provide a high quality of life for its residents; and

WHEREAS, over the last several years the State of California has gone from one financial crisis to another with no end in sight; and

WHEREAS, during each of the past several years the State of California has reduced or taken funding from cities, counties, and school districts in order to fund its deficits and may continue to do so into the foreseeable future; and

WHEREAS, the State of California has shifted responsibility for many programs back to cities, like Lemoore, without the necessary funds to provide the services residents need and expect; and

WHEREAS, transient occupancy tax revenues, which have been a source of locally controlled funds available to pay for essential City services, are limited; and

WHEREAS, the City of Lemoore needs dependable and local sources of revenue to fund and to support essential, necessary, and appropriate general City services provided to the public; and

WHEREAS, the City's general fund expenditures are projected to increase due to inflationary costs and unfunded mandates from the state in the near future causing the City to have challenges to maintain all levels of service and will not have capacity to fund facilities that are necessary to deliver services that the community desires; and

WHEREAS, a local funding measure to increase transient occupancy tax revenues would provide an additional local revenue source to help maintain and limit or prevent additional future cuts to essential, necessary, and appropriate general City services; and

WHEREAS, pursuant to California Revenue and Taxation Code section 7280, et seq., the City of Lemoore ("City") has the authority to levy a transient occupancy tax ("TOT") upon the privilege of occupying a hotel, as defined in Chapter 3 of Title 3 of the City's Municipal Code, for a period of 30 days or less; and

WHEREAS, the City's TOT rate is currently eight percent (8%). Many nearby jurisdictions have a TOT rate between ten percent (10%) and twelve percent (12%). At this time, the City's TOT rate is less than each of the following jurisdictions: Visalia, Porterville, Tulare, Fresno, Selma, and Kingsburg; and

WHEREAS, the City desires to increase its TOT from the existing eight percent (8%) to twelve percent (12%) effective January 1, 2027; and

WHEREAS, this measure will give the City of Lemoore local control over local funds for local needs and no funds from this measure can be taken by Sacramento.

NOW THEREFORE, the people of the City of Lemoore do ordain as follows:

Section 1. Lemoore Municipal Code Section Chapter 3 of Title 3 (3-3B-3) is amended to state:

3-3B-3: TAX IMPOSED:

For the privilege of occupancy in any hotel, each transient shall be subject to and shall pay a tax in the amount of eight percent (8%) of the rent charged by the operator. Effective July 1, 2026, such tax shall be in the amount of twelve percent (12%). Such tax shall constitute a debt owed by the transient to the city, which debt shall be extinguished only by payment to the operator or to the city. The transient shall pay the tax to the operator of the hotel at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. The unpaid tax shall be due upon the transient's ceasing to occupy space in the hotel. If for any reason the tax due is not paid to the operator of the hotel, the director of finance may require that such tax be paid directly to the director of finance.

Section 2. This Ordinance has been reviewed for compliance with the California Environmental Quality Act (CEQA), the CEQA Guidelines (Title 14, Division 6, Chapter 3 of the California Code of Regulations), and the City's environmental procedures. The City has determined that this Ordinance is exempt from CEQA pursuant to CEQA Guidelines Section 15060(c)(2), 15060(c)(3), and 15061(b)(3) because the city council hereby finds with certainty that there is no possibility the passage of this Ordinance will result in a direct or reasonably foreseeable indirect physical change in the environment nor have a significant effect on the environment

Section 3. If any section, subsection, clause, sentence, word, or phrase of this Ordinance is for any reason held to be invalid and/or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of remaining portions of this Ordinance. The city council declares that it would have adopted this Ordinance and each of the provisions thereof irrespective of the fact that one or more such provisions, sections, subsection, phrases, or clauses be declared invalid and/or unconstitutional.

Section 4. If this Ordinance is approved by a majority of the electors voting on the issue at the November 3, 2026, primary municipal election, pursuant to Elections Code Section 9217, the Ordinance shall become effective ten (10) days after the city council accepts the certified results of the election.

Section 5. The city clerk is hereby directed to publish this Ordinance at least once, within fifteen (15) days after the election results are certified, in a newspaper of general circulation published and circulated in the City of Lemoore.

PASSED, APPROVED, AND ADOPTED, on this third (3rd) day of November 2026.

ATTEST:

Marisa Avalos
City Clerk

APPROVED:

Patricia Matthews
Mayor